

14. *Percy v. Urbina, et al*, Case No. CIVSB2501710
Motion to Compelling Responses to Subpoena Duces Tecum
5/18/26, 9:00 a.m., Dept. S17

The Court would **GRANT** this unopposed motion.

Third Party, Uber Technologies, Inc., shall comply within ten (10) days. Responses may include objections.

The Court would also award sanctions in the amount of \$1,000, due within thirty (30) days. While the movant sought more in sanctions, the Court would deviate downward as the motion was terse, uncomplicated, and uncontested.

15. *Lopez v. United Parcel Service, Inc., et al*, Case No. CIVSB2512060
Defendant UPS's Motion for Judgment on the Pleadings
5/18/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date on March 19, 2026, to allow meet-and-confer efforts

Tentative Ruling

As to Requests for Judicial Notice: The Court would **GRANT** Defendant's request to take notice of the bankruptcy filings [RJN, Exhs. A-B] and of the arbitration documents [RJN, Ex. D], for the purpose of showing that arbitration took place. The Court would **DENY** as to the collective bargaining agreement. (RJN, Exh. C.)

As to the Motion: The Court would **DENY**, without prejudice, as judicial estoppel cannot be determined from the facts alleged and bankruptcy filings alone. The Court would **GRANT LEAVE** of 30 days to allow for an amended complaint to address the standing issue.

Case Summary

This is, essentially, a discrimination and wrongful termination of employment action. Plaintiff alleges that he was hired by Defendant in 1997 to work at its Ontario, California facility. He asserts that, starting as of 2005, he was promoted to work in Revenue Audit, scanning boxes, among other things. Sometime in 2005, he asserts he felt a sharp pain in his shoulder and went through the workers' compensation process, being returned to work without restrictions. He was told to self-medicate with over-the-counter ibuprofen, but he alleges his shoulder injury never fully healed.

About ten years later, having self-medicated with ibuprofen, Plaintiff alleges he developed kidney problems and Type II diabetes, among other things. In or around 2019, Plaintiff re-injured his shoulder and was once again sent to workers' compensation. However, this time, was placed on work restrictions. In February of 2020, he grew frustrated from what he viewed as inadequate treatment and hired a workers' compensation attorney who arranged for an MRI of the shoulder. The analysis resulted in Plaintiff being scheduled for reparative surgery. He notified Defendant of his need for temporary medical leave accommodation. In June of 2021, he returned to work, but in January of 2022 was diagnosed with stage four kidney failure. This diagnosis resulted in intermittent use of marijuana as a palliative or alternative to pain medication. Later, at a driver's recertification assessment, he was tested positive for marijuana and his employment was terminated.

On April 28, 2025, Plaintiff filed suit against Defendant for (1) disability discrimination; (2) failure to reasonably accommodate; (3) failure to engage in the interactive process; (4) retaliation in violation of the Fair Employment and Housing Act (FEHA); (5) failure to take all reasonable steps to prevent or remedy discrimination or retaliation; (6) wrongful termination in violation of public policy; (7) unlawful medical inquiry in violation of FEHA; (8) violation of Labor Code § 432.6 and Government Code § 12953; (9) violation of Labor Code §§ 226.7 and 512; (10) violation of Labor Code §§ 202-203; (11) violation of Labor Code § 558.1; and (12) violation of the unfair competition law.

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

Here, Defendant UPS asserts that Judgment on the Pleadings (JOP) Is appropriate since Plaintiff is judicially estopped from asserting the causes of action because he failed to list his claims against Defendant as an asset in his 2022 Chapter 7 bankruptcy. "In the bankruptcy context, a party is judicially estopped from asserting a cause of action not raised in a reorganization plan or otherwise mentioned in the debtor's schedules or disclosure statements." (*Hamilton v. State Farm Fire & Cas. Co.* (9th Cir. 2001) 270 F.3d 778, 783.) "Judicial estoppel will be imposed when the debtor has knowledge of enough facts to know that a potential cause of action exists during the pendency of the bankruptcy, but fails to amend his schedules or disclosure statements to identify the cause of action as a contingent asset." (*Id.* at p. 784.)

Plaintiff concedes the issue of failing to disclose his claims against Defendant in his 2022 bankruptcy action. He asserts this was due to a mistake of counsel or Plaintiff's legitimate good faith ignorance that it should have been disclosed. He also concedes there is an issue of standing in relation to his Chapter 7 bankruptcy. He argues that, instead of JOP, the proper remedy is to allow him to amend his Complaint and allow the bankruptcy trustee to appear as a real party in interest or to plead facts in support of standing.

This case appears controlled by *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995. In *Cloud* similar facts are presented: the defendant Northrop terminated the plaintiff's employment, and the plaintiff filed a Chapter 7 bankruptcy petition. The *Cloud* plaintiff did not disclose any claim or potential claim against Northrop. (*Cloud, supra*, 67 Cal.App.4th at p. 998.) While her bankruptcy action was pending, the plaintiff filed a complaint with Department of Fair Employment and Housing (DFEH). And, after she received her discharge and while her bankruptcy was still pending, the *Cloud* plaintiff filed a wrongful termination and sexual harassment action against Northrup. The plaintiff's bankruptcy case was thereafter closed, and Northrup later brought a motion for judgment on the pleadings because the plaintiff had not scheduled her claims against Northrop as assets of her bankruptcy estate. Northrup raised the standing issue, as well as the judicial estoppel argument. (*Ibid.*)

While the Court of Appeal noted it was not technically proper to consider the plaintiff's declaration, it nonetheless discussed what the plaintiff stated about following her bankruptcy attorney's instruction, not knowing she had a valid claim against Northrop, and the circumstances of her filing. The Court of Appeal reversed the trial court's ruling that granted the motion without leave to amend based on lack of standing and judicial estoppel. It found that, with respect to standing, the trial court should have granted leave to amend because plaintiff could have substituted in the real party in interest, the bankruptcy trustee, or to obtain the trustee's abandonment of the claim. (*Id.* at pp. 1000-1011.)

The *Cloud* court discussed the specific facts and findings in *Ryan Operations G.P. v. Santiam-Midwest Lumber Co.* (3rd Cir. 1996) 81 F.3d 355, a summary judgment case, and that *Ryan* noted judicial estoppel is an "extraordinary remed[y] to be invoked when a party's inconsistent behavior will otherwise result in a miscarriage of justice." (*Ryan Operations G.P., supra*, 81 F.3d at p. 365.) "It is not meant to be a technical defense for litigants seeking to derail potentially meritorious claims, especially when the alleged inconsistency is insignificant at best and there is no evidence of intent to manipulate or mislead the courts." (*Ibid.*) "Judicial estoppel is not a sword to be wielded by adversaries unless such tactics are necessary to 'secure substantial equity.'" (*Ibid.*)
